

Line 6

Case Name: *LVNV Funding LLC v. Teresa L. Pulido, et al.*

Case No.: 21CV387694

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Teresa Lopez Pulido (“Defendant”) moves under Code of Civil Procedure Section 473.5 to vacate the Default and Default Judgment on the ground that she did not receive actual notice of this action in time to defend it. Notice of Motion (the “Motion”) at page 2.⁴ (filed: Dec. 22, 2025).

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court DENIES the Motion on two independent grounds: (1) the Motion is time-barred under Code of Civil Procedure section 473.5(a); and (2) Defendant’s Declaration is too conclusory to satisfy the statutory showing required by Code of Civil Procedure section 473.5(b).

I. BACKGROUND AND PROCEDURAL HISTORY

This action arises from a debt-collection matter brought under the Fair Debt Buying Practices Act. (Civ. Code, § 1788.50 et seq.). Plaintiff LVNV Funding LLC (“Plaintiff”) filed the Complaint on August 25, 2021.

The court file and docket of this case, of which the Court takes Judicial Notice, shows all of the following:

Default was entered by the Clerk of the Court on August 28, 2023. And that before entry of default, plaintiff mailed a copy of the Request for Entry of Default on July 19, 2023, to Teresa L Pulido 385 Manferd St Milpitas CA 95035-2646.

On April 11, 2025, the Court entered Default Judgment in favor of Plaintiff and against Defendant in the amount of: (1) Damages \$3,567.76 (2) Prejudgment interest \$0.00 at the annual rate of 10% (3) Attorney fees \$810.16 (4) Costs \$278.00 (5) TOTAL \$4,655.92.

The Default Judgment was signed and dated by Judicial Officer Theodore C. Zayner on April 11, 2025. The Court took Judicial Notice at the time of Entry that defendant was properly served with a copy of the Summons and Complaint; Defendant

⁴ This filed Motion does not contain page number or line numbers. The Court has supplied the page numbers here for clarity of the record.

failed to answer the complaint or appear and defend the action within the time allowed by law; and Defendant's default was entered by the clerk upon Plaintiff's application.

Importantly, the court file and docket of this case expressly state that the April 11, 2025 Default Judgment was **served on Defendant on April 14, 2025**, by being "mailed on 4/14/2025" by the Clerk of the Court to Defendant. *See* Case Docket, 21CV387694, Event: "Judgment: Default \$4,655.92 For: Plaintiff LNNV Funding LLC Against Defendant Tereas L. Pulido mailed on 4/14/2025" (filed: April 15, 2025).

Defendant now moves under Code of Civil Procedure Section 473.5 to vacate the Default and the Default Judgment against her. The Motion is supported by Defendant's Declaration and a proposed Answer.

Defendant's Declaration states that she did not receive actual notice of this lawsuit in time to defend the action, that the Summons and Complaint in this case were served at an old address at which I did not reside at the time of service, and that she never received the Summons, Complaint, or any other court papers related to this case prior to the entry of Default and Default Judgment. She states that she first became aware of the Default Judgment in this case on January 16, 2026, when she was served paperwork at her place of employment indicating that her wages were going to be garnished. Before that date, she says she had no knowledge that a lawsuit had been filed against me or that a Judgment had been entered. She further states that upon learning of the judgment, she acted promptly and diligently to investigate the matter and seek relief from the Court, and had she received actual notice of this lawsuit, she would have timely responded and defended the action. Declaration of Teresa Lopez Pulido at ¶¶ 2-8 (filed: Jan. 21, 2026).

II. LEGAL STANDARD

Relief from a Default or Default Judgment under Code of Civil Procedure Section 473.5 is a creature of statute; meaning, that a party seeking relief under Section 473.5 must meet its statutory requirements or else the Court lacks authority to grant the relief requested under that statement.

Specifically, Code of Civil Procedure Section 473.5 authorizes relief from Default or Default judgment "when service of a summons has not resulted in actual notice to a party in time to defend the action[.]" (C.C.P. § 473.5(a)).

By the plain text of Section 473.5, the party moving for relief under Section 473.5 (here, Defendant) has the burden of satisfying two statutory requirements.

First, the Section 473.5 Motion must be filed within a reasonable time, but in no event exceeding the *earlier* of: (i) two years after entry of a default judgment against him or her; or (ii) *180 days after service* on him or her of a written notice that the default or *default judgment has been entered*. (C.C.P. § 473.5(a) (emphasis added)).

Second, the motion must be supported by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her

avoidance of service or inexcusable neglect. (C.C.P. § 473.5(b)). The plain text of this statute thus requires the moving party to establish affirmatively that any failure to receive notice was not the result of the party's own negligence or inaction. In other words, a movant whose lack of notice is attributable to the movant's own failure to maintain or provide a current address may be barred from relief, and that a bare assertion that the service address was no longer the movant's residence is insufficient when the address gap is attributable to the movant's own conduct.

Unfortunately, Defendant to carry her burden of satisfying those two statutory requirements for reasons the Court now explains.

III. ANALYSIS OF THE MOTION

A. This Section 473.5 Motion is time-barred by Section 473.5(a)(ii)

The Court has reviewed the register of actions and court file in this case. The Court takes judicial notice of its own records and finds the following facts:

Default was entered on August 28, 2023.⁵

Default Judgment was entered on April 11, 2025.⁶

Written notice of entry of April 11, 2025 Default Judgment was served by mail by the Clerk of the Court on Defendant on April 14, 2025.⁷

As explained above, Section 473.5(a) requires that the Motion be filed within a reasonable time, but in no event exceeding the earlier of two years after entry of default judgment or 180 days after service of written notice of entry of default or default judgment. Because written notice of entry of default judgment was served on Defendant on April 14, 2025, the 180-day deadline under subdivision (a)(ii) applies.

Defendant filed this motion on January 20, 2026. That date is 281 days after April 14, 2025, more than 100 days beyond the 180-day statutory limit. The Motion is therefore time-barred by the plain text of Code of Civil Procedure section 473.5(a)(ii).

⁵ See Case Docket, 21CV387694, Event: "Default Entered For: Plaintiff LNNV Funding LLC Against: Defendant Tereas L. Pulido mailed on 4/14/2025" (filed: Aug. 28, 2023).

⁶ The Default Judgment in this Case No. 21CV387694 states that this "Judgment Is Entered As Follows By the Court in favor of LNNV Funding LLC, and against Defendant Tereas L. Pulido" in the total amount of "\$4,655.92," and was entered, dated, and signed by Judge Theodore C. Zayner on "April 11, 2025."

⁷ See Case Docket, 21CV387694, Event: "Judgment: Default \$4,655.92 For: Plaintiff LNNV Funding LLC Against: Defendant Tereas L. Pulido **mailed on 4/14/2025**" by Clerk of the Court (filed: April 15, 2025) (emphasis added).

Defendant's subjective discovery of the judgment through wage-garnishment paperwork on January 16, 2026, does not extend or reset this 180-day statutory deadline. The statute measures the deadline from the date written notice of entry of default judgment was served, not from the date the defendant subjectively became aware of the judgment through some other means.

Because the motion was filed outside the statutory time limit, the Court may not grant relief under section 473.5. Accordingly, the Motion must be DENIED on this ground alone.

B. Defendant's Declaration is Insufficient under Section 473.5(b).

Even if the Motion were timely, the Court would deny it on the independent ground that defendant's Declaration is too conclusory to satisfy the statutory requirement that the lack of actual notice was not caused by avoidance of service or inexcusable neglect. (C.C.P. § 473.5(b))

Defendant states in her Declaration that service was made at an old address at which she did not reside at the time of service. However, the Declaration provides no information regarding when she moved from the 385 Manferd Street address, where she resided at the time of service, whether she arranged mail forwarding from the old address, whether the old address remained one at which she could reasonably receive mail, or why plaintiff possessed that address as her address of record. The Declaration does not establish that defendant moved before the Complaint was filed on August 25, 2021, or that any failure to receive process was entirely through no fault of her own.

Section 473.5's requirement that the lack of actual notice not be caused by inexcusable neglect imposes an affirmative burden on the moving party—here, Defendant—to explain the circumstances surrounding the address discrepancy and to establish that the failure to receive notice was not the result of the movant's own inaction or failure to maintain current address information. Bare assertion of nonresidence at the service address, without factual detail distinguishing the movant's situation from a case of inexcusable neglect, is insufficient to carry this burden.

Defendant's Declaration here amounts to a bare assertion of nonresidence at the service address, without the factual detail necessary to distinguish her situation from a case of inexcusable neglect. The absence of any chronology of residence changes, any explanation of mail-forwarding arrangements or the absence thereof, any documentary corroboration of residence at a different address at the time of service, or any showing that the address used by plaintiff resulted from circumstances beyond defendant's control renders the declaration insufficient under the statutory standard.

Hence, Defendant's Declaration fails to meet statutory requirement that the moving party establish affirmatively that the lack of actual notice before discovery was not caused by avoidance of service or inexcusable neglect. On the present record, Defendant has not carried that burden.

Because the Declaration fails to establish the absence of inexcusable neglect, the Section 473.5 motion fails.

IV. CONCLUSION & ORDER

For the foregoing reasons, the Motion of Defendant Teresa Lopez Pulido to set aside the default entered on August 28, 2023, and the default judgment entered on April 11, 2025, is **DENIED** on the following grounds:

The motion is time-barred under Code of Civil Procedure section 473.5(a)(ii), because it was filed more than 180 days after service of written notice of entry of Default Judgment on April 14, 2025.

Even if the motion were timely, it would be denied because Defendant's Declaration is too conclusory to establish that the lack of actual notice was not caused by avoidance of service or inexcusable neglect, as required by Code of Civil Procedure section 473.5(b).

The Default entered on August 28, 2023, and the Default Judgment entered on April 11, 2025, remain in full force and effect.

SO ORDERED.

Date: August 19, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Gerber J. Flores Marquez v. All Fab Precision Sheetmetal Inc., et al.*

Case No.: 23CV411306

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Gerber J. Flores Marquez (“Plaintiff”) moves to compel Defendant Ho Enterprises, LLC (“Ho Enterprises”) to serve further responses to Plaintiff’s Form Interrogatories, Set One (“FROGs”) served on April 23, 2026, and for sanctions against Defendant Ho Enterprises (“Defendant”) and its attorney Ted Broomfield, jointly and severally, in the amount of \$5,260.00 under Code of Civil Procedure Sections 2023.010(d),(e),(f),(i), 2023.030(a) *et seq.*, and 2030.300(d) for Plaintiff’s reasonable attorney’s fees and costs incurred for this Motion. Pl.’s Amended Notice of Motion (the “Motion”) at 2:7-18 (filed: July 17, 2026).

Defendant opposes the Motion and requests in its Opposition papers that the Court either continue the hearing until no earlier than February 22, 2027, or deny the motion and award Defendant \$4,710.12 in sanctions against Plaintiff and his attorney.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows. The Court **GRANTS** Plaintiff’s Motion to compel further responses to the Form Interrogatories in full, **ORDERS** Ho Enterprises to serve verified code-compliant further responses to the Form Interrogatories within thirty days of today, **AWARDS** Plaintiff reduced monetary sanctions in the amount of **\$2,750.00** jointly and severally against Ho Enterprises and its counsel Broomfield, and **DENIES** Defendant’s request for continuance and sanctions.

I. Procedural History and Factual Background

Plaintiff filed this action on February 7, 2023, arising out of a workplace injury involving a work press machine that amputated two of Plaintiff’s fingers. All Fab Precision Sheetmetal (AFPS) is Plaintiff’s employer and owner of the work press machine that amputated Plaintiff’s fingers. AFPS is sued under the work press exception to the workers’ compensation exclusivity rule.

The operative pleading now is Plaintiff’s First Amended Complaint (“FAC”). The Court granted Plaintiff leave to file the FAC by minute order dated January 30, 2026, adopting the tentative ruling of Hon. Vincent I. Parrett. The original Complaint was originally filed on February 7, 2023; Plaintiff filed the FAC on February 2, 2026. The FAC expanded Plaintiff’s theories of liability to negligence and premises liability as applied to